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Athens, 06-02-2025

Protocol No. 526

DECISION 9/2025

(Single-Member Body)

The President of the Hellenic Data Protection Authority, as a single-member body under Article 17, paragraph 1 of Law 4624/2019 (Government Gazette A' 137), within the framework of the powers provided in Articles 4, paragraph 3 and 10, paragraph 4 of the Authority's Operating Regulation (Government Gazette B' 879/25.02.2022), convened on Thursday, February 15, 2024, in order to examine the case referred to below in the background of this decision. Present without voting rights were Anastasia Tritaki, legal auditor – lawyer, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the complaints numbered A/EIΣ/8922/18-07-2022, G/EIΣ/8926/18-07-2022, G/EIΣ/8928/18-07-2022, G/EIΣ/8930/18-07-2022, G/EIΣ/8932/18-07-2022, G/EIΣ/8937/18-07-2022, the complainants A, B, C, D, E, and F (hereinafter referred to as the complainants) complain against Z (hereinafter referred to as the respondent), for:

A) the disclosure of their personal data through the letter dated 21-5-2021, accompanied by fifty-seven (57) supporting documents, which the respondent sent to: a) H (through Θ, Director of ...), b) I, in his capacity as ..., c) Metropolitan K, in his capacity as ..., d) Metropolitan L, e) Metropolitan M, f) ..., Archimandrite N.

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B) the disclosure of their personal data through the document dated 10-6-2021, which the respondent addressed to the General Archiepiscopal Commissioner of the Holy Metropolis of X, following the transfer of the aforementioned letter from the Metropolis 'K', due to lack of jurisdiction, to the Metropolis 'L'.

According to the allegations in the aforementioned complaints, the respondent is involved in a long-standing civil and criminal legal dispute with the complainants related to the purchase by the respondent of an apartment in a building where the complainants reside, as well as issues of neighborhood and urban planning violations that have since arisen. For this dispute, and given that three of the complainants are clergy, specifically A (Archimandrite, A), B (Archimandrite, B), and C (Hieromonk, C, currently active), the respondent sent the letter dated 21-5-2021 to the aforementioned recipients, attaching responsible statements, contracts, lawsuits, court decisions (with full content), extrajudicial documents, notifications of extrajudicial documents, documents from the Urban Planning Authority, copies of police documents (indicatively excerpts from the Crime and Incident Book or from the daily vehicle report), various applications of the complainants to public authorities, documents submitted by the complainants to Urban Planning services, and other documents containing a multitude of personal data of the complainants (indicatively personal details: address, contact information, marital status, tax identification number, professional status, property details). With the aforementioned letter dated 21-5-2021, the respondent requested the aforementioned recipients to conduct a thorough investigation regarding the matters mentioned in his letter and to provide a written response to the questions he raised, emphasizing that the purpose of the letter is "your broad information, and the admonition of the above with any means you deem appropriate, so that peace and tranquility may prevail in my home and my personal life."

According to the claims of the complainants, the respondent addressed the aforementioned recipients, without them having the authority to resolve in any way their private disputes. To substantiate this, the complainants cited:

- the letter numbered ... from the Holy Metropolis 'M' (protocol number Authority

G/EΙΣ/11910/19-11-2022) to the Holy Synod of the Church of Greece, which was communicated to the respondent, A, and B, stating that "From the totality of the documents presented before us, it appears that indeed there was and is a dispute of a private nature between the complainant Z against the aforementioned clergymen, concerning issues mainly of urban planning violations, matters relating to common expenses and common areas, and numerous other issues concerning the regulations of the apartment building, located on ... street number ... in The competent courts of the state have ruled on their disputes, and it is likely that the legal dispute will continue for a time that we are not in a position to know. Regarding matters pertaining to the jurisdiction of civil and criminal justice, we are incompetent to express any opinion given that the established Greek State has already ruled. Whether the issued court decisions are applied or not by the involved parties is a matter that pertains to the jurisdiction of the Greek Justice."

- the letter numbered ... from the Holy Metropolis 'L' (protocol number Authority G/EΙΣ/11910/19-11-2022) to the respondent, which states that the dispute of G does not constitute a disciplinary ecclesiastical offense, which would mean his summons for a defense, "since the whole matter is a private issue between you and the co-owners of the apartment building in which you reside."

Furthermore, the complainants claim that the letter was not submitted in a sealed envelope, "strictly personal," as the submitted envelopes were delivered to the offices or representatives of the aforementioned recipients or sent by mail, so that these envelopes could subsequently be processed accordingly. The complainants assert that they received phone calls from many clergy and lay employees, ..., of the Metropolises throughout Greece and from the Monastery 'N', in order to express their curiosity, in a manner that indicates, according to the...

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the claims of the complainants, the knowledge of their personal data by a multitude of third parties, known and unknown to them. Furthermore, the complainants declare that they were not informed by the respondent prior to the sending of the letter and the accompanying documents, nor had they provided any relevant consent for the disclosure of such information. The Authority, in the context of examining the aforementioned complaint, summoned the respondent with its letter numbered Αρχής Γ/ΕΞΕ/2527/11-10-2022 to present his views on this matter. In his memorandum numbered Αρχής Γ/ΕΙΣ/11606/08-11-2022, the respondent argued before the Authority, among other things, the following: a) that the documents attached to the letter are integral parts of it and satisfy the "necessary condition for proving the truth of my allegations, in order to avoid being characterized as a malicious slanderer," b) that the contested letter had a specific purpose which is explicitly stated at the end of it as follows: "By sending this letter, I wish to make you aware of the consistently unacceptable ecclesiastical behavior and conduct of three clergymen of the Eastern Orthodox Church (...) affecting my legitimate interests for over a decade and primarily scandalizing numerous believers and reputable citizens (...)," thus its purpose was to inform the competent ecclesiastical authorities about the public behavior of three of the six complainants, who hold the status of clergymen, c) that the contested letter with its accompanying documents was strictly personal to its recipients and was submitted by the respondent himself in a sealed envelope to the Holy Synod and to the Holy Metropolis of 'L', while the respondent personally delivered the contested letter to Metropolitan K and Metropolitan Θ (the respondent provided the relevant certificates); regarding the recipients outside Attica, the respondent stated that the contested letter was sent via a private mail distribution company (the respondent provided relevant shipping slips). The aforementioned, according to the respondent's statement, took place in order to ensure the complete confidentiality of the file's contents, d) the contested letter with its accompanying documents was circulated, according to the respondent's claim, to a strictly limited number of persons who were competent to be informed and to judge for any further actions regarding the allegations, as it constitutes a "report" to the competent hierarchs either currently "Superiors" of the complainant clergymen or those who in the past had a direct hierarchical or spiritual relationship with them, which "contains allegations regarding their behavior on factual matters evidenced immediately by the documents submitted along with it, but also specific requests, directly or indirectly, for the rectification or prevention of the moral and material damage to me from their actions."

With the letter numbered Αρχής Γ/ΕΙΣ/11837/16-11-2022, the complainants requested and received a copy of the respondent's views and in rebuttal submitted the memorandum numbered Αρχής Γ/ΕΙΣ/11910/19-11-2022, in which, after reiterating the claims they made in their initial complaints before the Authority, they further argued, among other things, the following: a) that the real purpose of sending the contested letter by the respondent was to exert pressure on the complainants, so that they, in their capacity as co-owners of the same building, would provide the required legal consent for the use of the common areas for which the respondent was being monitored by the competent urban planning authority F, b) that the submission of the contested letter with all the documents was followed by numerous disclosures of the personal data of the complainants with photocopies, archiving, and knowledge being taken by numerous employees of the relevant Secretariats, notably from the Holy Synod of the Church of Greece to the Holy Metropolis of 'M' with its letter numbered: ... which communicates "...the letter of Z, (...), along with the attachments therein,..." and from the Holy Metropolis of 'K', to Metropolitan L, with its letter numbered: ... which states the incompetence of Metropolitan K and forwards the contested letter in its entirety, c) that at no point in the memorandum does the respondent justify under what authority he disclosed the data of the other (3) three non-clerical citizens co-owners, d) that the I.M. 'M' and I.M. 'L' with their relevant decisions,

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They determined that they do not have the jurisdiction to address the reported issues (see above, the complainants submitted the relevant decisions), while Metropolitan K forwarded the relevant contentious letter along with its accompanying documents to the I.M. 'L', as he had no jurisdiction, and the other recipients did not respond accordingly, due to what the complainants believe to be a lack of relevant jurisdiction. Following the examination of the case file, the Authority sent the summons for a hearing numbered G/EIS/907/10-04-2023 to the respondent Z and the summonses numbered G/EIS/906/10-04-2023, G/EIS/905/10-04-2023, G/EIS/904/10-04-2023, G/EIS/903/10-04-2023, G/EIS/902/10-04-2023, and G/EIS/901/10-04-2023 respectively to the complainants, in order to attend, via teleconference, a hearing before the President of the Authority, as a sole-member body, on Wednesday, April 26, 2023, at 10:00 a.m. regarding the discussion of the aforementioned complaints. During the aforementioned session, the complainants were present with their attorney Despoina Pateli (Bar Association No. ...), while the respondent appeared in person and submitted a request for postponement of the session due to the absence of their attorney Maria-Penelope Liakogona (Bar Association No. ...), for which they also submitted the documents numbered G/EIS/3013/25-04-2023. The President of the Authority accepted the request for postponement and scheduled the discussion for a new date on Wednesday, May 10, 2023, at 12:30 p.m. During the session before the President of the Authority on May 10, 2023, the complainants were present with their attorney Despoina Pateli (Bar Association No. ...), while the respondent was present with their attorney Maria-Penelope Liakogona (Bar Association No. ...). Both parties, after orally presenting their views, were given a deadline during this session to submit written memoranda by May 29, 2023, to further support their claims. Following this, the complainants timely submitted the memorandum numbered G/EIS/4035/29-05-2023, while the respondent timely submitted the memorandum numbered G/EIS/4041/29-05-2023.

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During the aforementioned hearing and with the memorandum numbered G/EIS/4035/29-05-2023 following the hearing, the complainants further elaborated on the claims they had previously presented before the Authority and added, among other things, that a) the recipients of their data are entirely incompetent regarding the private dispute brought to their attention, a fact evidenced by the absence of responses (except for the responses from I.M. 'M' and I.M. 'L' mentioned above). The only competent authorities for disciplinary control would be exclusively Metropolitan L and Metropolitan M, as it is explicitly provided, according to the sacred rules of the Church and the law, that each cleric (priest) is canonically dependent on their bishop, specifically the "local" bishop under whom the cleric is subject and not to any other bishop or to any priest (such as the Abbot of the [Monastery] 'N') or, even more so, to a group of ecclesiastical officials and a group of clerics or to public legal entities and private legal entities, within and outside Greece. (Article 1.a of Regulation No. 305/2018 (Government

Gazette A' 153) according to which: "1.a. A parish priest is called a cleric of the Orthodox Church of Greece, holding the second degree of the priesthood (Presbyter), canonically ordained and canonically dependent on the local Metropolitan, who covers the liturgical, pastoral, and welfare needs of the Parish" and Article 100 of Law 5383/1932 according to which: "The competent Metropolitan (or their lawful deputy) upon becoming aware, either following a complaint or by any other means, that a cleric or monk has committed an offense subject to ecclesiastical penalty, shall instruct, provided it is not a minor offense, for which disciplinary authority can be exercised by the Metropolitan, one of the members of the episcopal court or another cleric to proceed with the necessary investigations," b) the designation "strictly personal" does not ensure the confidentiality of the contents of the file in public legal entities and private legal entities, c) Article 6 paragraph 1 letter f) of the GDPR cannot be applied, as the interests or fundamental rights of the complainants prevail, since 3 out of 6...

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do not bear the priestly status, while the form and extent of the letter and its accompanying documents do not constitute a necessary, appropriate, and proportional means. During the aforementioned hearing and with the reference number G/EIS/4041/29-05-2023 following the hearing, the respondent further elaborated on the claims he had previously made before the Authority and added, among other things, that

- a) the said report does not fall within the scope of Regulation 2016/679 (EU) (GDPR), as it concerns a private dispute (Article 2 para. 2 subpara. c of the GDPR), while he himself is not considered a "data controller"
- b) that if it were to be considered that Regulation 2016/679 (EU) is applicable, the said processing falls under Article 6 para. 1 subpara. f of the GDPR, for the protection of the legitimate interests pursued by the data controller or a third party, as the safeguarding of his legal rights was the sole purpose of sending the letter,
- c) that he addressed the contentious letter to the ecclesiastical superiors of the three clergy complainants, responsible for their admonition, while he also addressed it to the Abbot of the I.M. 'N' and to H, due to the spiritual ties he knew they had with the clergy,
- d) that he took every reasonable and logical means to ensure the receipt of the files, delivering them sealed and designating them as strictly personal,
- e) that he proceeded to send the contentious letter, along with its attachments, exercising his right under Article 10 of the Constitution and the executive law N.D. 796/71 to report to the authorities, addressing absolutely competent persons for the admonition of the three clergy, while the mention of other persons continued necessarily with the described behavior of the clergy and the factual incidents referred to in the letter,
- f) that the submission of the report is based on the provisions of Law 590/1977 "On the Statute of the Church of Greece," specifically Articles 44 para. 1 and 55 para. 3, as well as the provisions of Law 5383/1932 "On Ecclesiastical Courts," specifically Articles 2, 7, and 100 of this law.
- g) that the sending of the accompanying documents of the letter was necessary, as otherwise there would be a risk that the incidents described in the letter would not be taken into account by the competent hierarchs, that the reports would not be examined properly, and that the complainant would be considered a "malicious slanderer,"
- h) that he chose the mildest, minimally necessary method of notification, communicating only simple data of the complainants, many of which were already known to the recipients due to hierarchical and interpersonal relationships.

The Authority, after examining the elements of the file and what arose from the hearing before it and the submissions of the parties

CONSIDERED IN ACCORDANCE WITH THE LAW

1) Since from the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation 2016/679) and Article 9 of Law 4624/2019 (Government Gazette A' 137) it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data. Moreover, an activity cannot be considered exclusively personal or domestic, in the

sense of the provision of Article 2 para. 2 subpara. c) of the GDPR and thus exempt from the scope of this Regulation when it extends, even partially, into the public sphere and, therefore, exits the private sphere of the data processor, while the submission before an authority or body entails, at least, the "use" and "disclosure by transmission" of "personal data" within the meaning of Article 4 subpara. 1) and 2) of the GDPR.

1 See also DPA 81/2011 and 11/2012, available on the Authority's website. See also P. Armamendto / V. Sotiropoulos, *Personal Data - Interpretation of Law 2472/1997*, Sakoula Publishing S.A. 2005, para. 258, which emphasizes that participation in social, economic, and political life inherently removes the exclusively personal character from an activity.

2 CJEU, C-25/17 (Grand Chamber), July 10, 2018, para. 42.

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GDPR3. In this case, the complaint under consideration concerns non-automated processing (organization and communication through transmission) of personal data, which has been included in a filing system within the meaning of Article 4, points 2) and 6) of the GDPR, and has not remained for the exclusive personal or domestic use of the complainant⁴, but has been sent to ecclesiastical authorities. With this data, in the case under examination, there is a situation of processing that falls within the regulatory scope of Articles 2, paragraph 1 of the GDPR and 2 of Law 4624/2019, and therefore, the Authority has the jurisdiction to address the complaint under consideration in accordance with the provisions of Articles 57, paragraph 1, point (f) of the GDPR and 13, paragraph 1, point (g) of Law 4624/2019.

2) Because according to the provisions of Article 6, paragraph 1, point (f) of the GDPR regarding the legality of processing: "1. Processing is lawful only if and to the extent that at least one of the following applies: (...) (f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly if the data subject is a child. (...)". A case of overriding legitimate interest exists, in particular, if the processing concerns data necessary for the recognition, exercise, or defense of a right in legal proceedings or before a disciplinary body⁵. Furthermore, a prerequisite for the lawful application of the above provision is that the data for which access is requested or which is used in any way is absolutely necessary and suitable for the recognition and exercise of the right (principle of necessity), particularly in light of the specific dispute that is pending. The necessity exists when the intended purpose cannot be achieved by other less intrusive means. The data must also not be more than what is absolutely necessary for the defense of the right⁶.

3) Because according to Article 10, paragraph 1 of the Constitution, "Everyone or many together have the right, while observing the laws of the state, to make written representations to the authorities, which are obliged to act promptly according to the applicable provisions and to respond reasoned to the person who submitted the representation, in accordance with the law."

4) Because the Church of Greece is autocephalous and governed by its Statute, which was ratified by Law 590/1977 (Government Gazette A' 146). According to the provisions of Article 1, paragraph 4 of Law 590/1977 (Government Gazette A' 146), the Church of Greece, as well as, among others, the holy metropolises, the holy monasteries, and the parishes are characterized as legal entities of public law regarding their legal relations. When these public legal entities exercise public authority in their internal relations or in their relations with third parties, they are considered administrative authorities, and the acts of their bodies have the nature of administrative acts, which are subject to annulment requests⁷. The holy monasteries of Mount Athos, moreover, are governed by the provisions of Article 105 of the Constitution, the Statute of Mount Athos, and Decree Law 10/16-9-1926 (Government Gazette A' 309).

5) Because according to the provisions of Article 44, paragraph 1 of Law 590/1977 (Government Gazette A' 146): "1. The offenses of clergy and monks related to their duties and the profession of their confession, which entail canonical sanctions, are adjudicated by ecclesiastical courts. A specific law regulates the establishment, composition, jurisdiction, and operation of these courts, until the issuance of which Law 5383/1932 'on ecclesiastical courts and the procedure before them' remains in force.", while according to the provisions of Article 55, paragraph 3 of the same law: "Any layperson having a

reasonable complaint against the ecclesiastical authority is entitled to refer to the D.I.S8., which shall promptly address the matter.”

6 Based on the principle of proportionality, see e.g. Supreme Court 1923/2006, Council of State 2252/2005.

7 Council of State 3619/1982, 3470/1985, 1571/1986, see also in E. P. Spiliotopoulos, Administrative Law Handbook, Ed. Antonis N. Sakoulas 2002, paragraph 373.

8 Permanent Holy Synod.

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The relevant Archbishop is requested to provide information within a month regarding any action taken. If the report concerns a cleric, it is forwarded by the Holy Synod to the relevant Archbishop, who is obliged to take the necessary actions.

6) Since the operation of ecclesiastical courts is governed by the provisions of Law 5383/1932 "On Ecclesiastical Courts" (Government Gazette A' 110), according to the provisions of Article 2 of which: "In the Archdiocese and in each Diocese, an Episcopal Court is established, having jurisdiction to handle the cases of priests, deacons, and monks." Furthermore, according to the provisions of Article 7 of the same law: "The Episcopal Court adjudicates ecclesiastical offenses committed anywhere by clerics and monks under the pastoral care of the Metropolitan, as well as ecclesiastical offenses committed within the jurisdiction of the Diocese by any cleric or monk under the pastoral care of any Metropolitan." Moreover, according to Article 100 of this law: "The competent Metropolitan or, in the case of a vacancy in the Diocese, the caretaker thereof, upon becoming aware, either due to a submitted complaint against him that a cleric or monk has committed an offense resulting in canonical punishment, as long as in his judgment it does not concern a minor offense for which he can exercise his administrative rights, personally conducts regular sworn inquiries or assigns the conduct or completion of them to one of the members of the Episcopal Court."

7) Since according to the provisions of Article 105 paragraph 5 of the Constitution: "(...) A law also determines the judicial authority exercised by monastic authorities and the Holy Community, as well as the customs and tax advantages of Mount Athos." According to the provisions of Article 7 of Decree-Law 10/16-9-1926 (Government Gazette A' 309) "Justice in Mount Athos is administered regarding ecclesiastical violations and the borderline or from the agreements of any dispute by the Monastic Assemblies and Elders, of the Holy Community and Exarchate of the Ecumenical Patriarchate after a two-year assembly." (...) Furthermore, according to the provisions of Article 9 paragraph 1 of the aforementioned Decree-Law: "The judicial jurisdiction of Mount Athos is regulated as follows: 1. The monastic assemblies and elders duly constituted and presiding adjudicate in first instance: a) All ecclesiastical and disciplinary offenses of both the brothers of the monastery and its dependencies. b) (...)

8) Since, as has been ruled by the Council of State (2480/2015 Division C), the possession and maintenance of the status of cleric is inextricably linked to the exercise of his religious function and the resulting obligation to comply with the duties and promises of his confession (cf. Council of State 4078/1979 Plenary). Any violation of this obligation entails the imposition of canonical sanctions (see Articles 1 and 44 of Law 590/1977, in conjunction with the provisions of Law 5383/1932 on ecclesiastical courts, as applicable), which may reach up to the removal of the cleric by the competent ecclesiastical authorities, under specific substantive and procedural conditions, which relate to the application of Article 3 of the Constitution (self-governance of the Church of Greece by the active Metropolitans, obligation to "strictly adhere to [...] the sacred apostolic and synodal rules and the sacred traditions").

9) Since from the entirety of the evidence in the file, and what emerged from the hearing process and the submissions of the parties, it appears that the respondent submitted the letter-report dated 20-5-2021 with relevant details to the authorities that, in his belief, were competent to address the behavior of three of the complainants who hold the status of cleric, with the aim of informing these authorities about their behavior and submitting a request for the investigation of the described factual incidents. However, from the entirety of the evidence in the case, in light of the provisions mentioned above in considerations 4-8, it appears that only two of the six recipients of the contentious letter,

namely Metropolitan L and Metropolitan M, initially had the ability to exercise disciplinary control over the complainants who hold the status of cleric and

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fall under their jurisdiction, namely of G the first and of A and B the second, respectively. In this regard, the processing operation in question, which consists of the communication of the data of the aforementioned complainants to the authorities competent in this matter, is deemed to be, in principle, necessary, appropriate, and essential for the purposes of the legitimate interests of the data subject, and therefore falls under the provisions of Article 6(1)(f) GDPR.

10) However, as emerges from the entirety of the case's elements, beyond the aforementioned Metropolitans L and M, who had jurisdiction to oversee the aforementioned three clerics according to the respective jurisdiction of each, as stated in the previous consideration, the other recipients of the contested letter-report do not have the authority to exercise oversight over the behavior of these three clerics. Consequently, the communication of their data does not appear to be appropriate or necessary for the exercise of the right to report of the data subject. Moreover, the communication of the data of the complainants who do not hold the status of clerics, to all recipients of the contested letter-report, along with the relevant details, was not necessary or appropriate for the exercise of the right to report of the data subject and cannot be considered to have a legal basis for such processing under the provisions of Article 6(1)(f) GDPR.

11) Following all the above, a violation is established on the part of the data controller, of the provisions of Article 6(1)(f) GDPR, as set forth in consideration 10 above, and therefore, according to the Authority's assessment, there is a case for exercising its corrective powers under Article 58(2) GDPR. Specifically, the Authority deems that there is a case for imposing, in accordance with the provision of Article 58(2)(h) GDPR, an effective, proportionate, and deterrent administrative monetary fine, in accordance with the provisions of Article 83(3) and (5) GDPR, taking into account recitals 148 GDPR, as well as

10 See also DPA 155/2012, DPA 27/2001, 75/2001, 92/2011, 111/2011, 131/2011, 155/2012 available on its website.

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the Guidelines of the Article 29 Working Party for the application and determination of administrative fines for the purposes of Regulation 2016/679 and the Guidelines 04/2022 for the calculation of administrative fines under the GDPR of the European Data Protection Board.

In evaluating the data, in order to select the appropriate and corrective measure, the Authority takes into account the following criteria under Article 83(2) GDPR:

- "the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered." It is noted that this specific violation concerns six subjects; however, it did not take on a broader character, while the complainants did not invoke or substantiate before the Authority any material damage related to this violation (Article 83(2)(a) GDPR).
- "the intent or negligence that caused the infringement." It is noted that this violation is due to the negligence of the complainant (Article 83(2)(b) GDPR).
- "any actions taken by the data controller or the processor to mitigate the damage suffered by the data subjects." It is noted that the contested letter-report along with the relevant details was submitted in a strictly personal file to its recipients, while the security of this data, after its inclusion in the recipients' file, is not the responsibility of the data controller, but exclusively of the recipients, as independently responsible processors (Article 83(2)(c) GDPR).

11 https://www.dpa.gr/sites/default/files/2019-12/wp253_el.pdf

12 https://edpb.europa.eu/system/files/2023-06/edpb_guidelines_042022_calculationofadministrativefines_en.pdf

13 According to Article 5(2) GDPR.

- "any relevant previous infringements by the data controller or the processor." It is noted that no previous complaint against the respondent in the present case has been brought to the Authority's attention (Article 83(2)(e) GDPR).

FOR THESE REASONS

The Authority,
partially accepts the complaint under consideration,
finds a violation of Article 6(1)(f) GDPR on the part of the respondent Z and imposes, for the above violation on the respondent, a monetary fine of one thousand (1,000) euros,
for the reasons extensively analyzed in the reasoning of this decision.

The President

The Secretary
Konstantinos Menoudakos
Irina Papageorgopoulou